IN THE NATIONAL COMPANY LAW TRIBUNAL, AHMEDABAD
COURT - 2

ITEM No402

CP(CAA)/18(AHM)2023
in
CA(CAA)/66(AHM)2022

Proceedings under Section 230-232 of Co. Act, 2013

IN THE MATTER OF:

Famy Life Science Private Limited **.....Applicant**
Famy Pharma Private Limited

.....Respondent

Order delivered on 01/08/2023

Coram:

Mr. Shammi Khan, Hon'ble Member(J)
Mr. Ajai Das Mehrotra, Hon'ble Member(T)

PRESENT:

For the Applicant : Mr. Navin Pahwa, Sr. Adv. a.w Mr. Ravi Pahwa, Adv.

ORDER

Learned Sr. Counsel Mr. Navin Pahwa appears for the petitioner companies.

We seek following clarification:

> On perusal of the record, it is observed that the petitioner companies submitted that Mylan Pharmaceuticals, one of the shareholders of the Demerged Company, has decided not to take new shares in exchange of shares of the Demerged Undertaking from the Resulting Company. However, no evidence has been given that the said shareholder is willing to give up its claim for new shares of the Resulting Company.

Learned Sr. Counsel Mr. Navin Pahwa for the petitioner undertakes to provide necessary clarification within three days.

List for hearing on 04.08.2023

-Sd- -Sd-

AJAI DAS MEHROTRA
MEMBER (TECHNICAL)

SHAMMI KHAN
MEMBER (JUDICIAL)

Prakash - Steno